~~TOP SECRET~~ TOP SECRET

5th

MEETING OF HEADS OF GOVERNMENT, BERLIN, JULY 21, 1945, 5 P.M.

PRESENT: The President
Secretary Byrnes
Admiral Leahy
Ambassador Harriman
Ambassador Pauley
Ambassador Davies
Assistant Secretary Dunn
Assistant Secretary Clayton
Mr. Cohen
Mr. Matthews
Mr. Bohlen

Prime Minister Churchill
Mr. Eden
Mr. Attlee
Sir A. Cadogan
Ambassador Clark Kerr
Sir William Strang
Major Bierse




Premier Stalin
Mr. Molotov
Mr. Vyshinski
Ambassador Gromyko
Ambassador Gusev
Mr. Novikov
Mr. Sobolev
Mr. Pavlov

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E.O. 11652, Sec. 3(E) and 5(D) or (E)
Dept. of State letter, Aug. 10, 1972
By NLT-NG, NARS Date 6-26-76

The meeting of the Heads of States opened at 5:15 p.m. on Saturday, July 21, 1945. The President opened the meeting by stating that the Secretary of State had a report to deliver.

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MR. BYRNES delivered a report on the meeting of Foreign Ministers on the morning of July 21, 1945 (copy of report attached). Mr. Byrnes read the portions of this report dealing with the Council of Foreign Ministers and German economic questions.

MR. BYRNES then reported that the Chairman of the subcommittee which has been dealing with the Polish question, including the liquidation of the London Government and the implementation of the Yalta declaration, had presented the subcommittee's report. Since the subcommittee had been unable to reach full agreement, points of disagreement were first discussed by the Foreign Ministers who were likewise unable to reach agreement and had agreed to refer the matter to the Heads of Government for final decision.

MR. BYRNES called attention to the difference existing in connection with the second paragraph of the proposed statement on the Polish question. (Annex 2). This paragraph concerns the question of the transfer to the Polish Provisional Government of assets and property belonging to the Polish state located in the United States and Great Britain. After reading this paragraph, Mr. Byrnes asked whether it was desired to act on this question while it was fresh in the minds of the Heads of State rather than proceed to the other points.

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STALIN asked that Mr. Byrnes proceed with his report.

MR. BYRNES stated that on the third paragraph of the report there was no disagreement, but that on the fourth paragraph disagreement existed. Mr. Eden had agreed to the withdrawal of this paragraph, provided that the last sentence was retained and a new paragraph added regarding freedom of the press. He read the proposed new paragraph.

THE PRESIDENT

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THE PRESIDENT stated that in the United States it was impossible to transfer assets without taking liabilities into account, either legally or otherwise. As he had stated before, there was no intention in the United States for America to assume burdens of this sort. It was therefore absolutely necessary for liabilities to be taken into consideration. We will give the Polish Provisional Government everything coming to it and we want to be friendly.

CHURCHILL stated that the British were content with the President's proposal, particularly the words stating that assets would not be released except on condition that liabilities would be assumed. Churchill went on to ask how the re-draft of paragraph two of the statement on the Polish question covered the question of liabilities.

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THE PRESIDENT asked Mr. Byrnes to read the paragraph again.

MR. BYRNES stated that the language made no specific mention either of assets or liabilities and then read the paragraph in question.

CHURCHILL repeated that this paragraph dealt neither with assets nor liabilities.

THE PRESIDENT stated that we were proposing to deal with the Polish Provisional Government under American law.

CHURCHILL remarked that there is no provision at all in the case of the British for any transfer of liabilities, particularly in connection with the 120 million (pounds) advanced by the British Government to the former Polish Government in London.

MR. BYRNES stated that there is not. It is the American position that the settlement of property rights is a matter that lays between the Polish Provisional Government and the United States Government.

CHURCHILL inquired whether the same position would apply to the British.

MR. BYRNES answered that it would, of course, and also to the Soviet Government. He saw no reason for a special declaration by the United Kingdom, the Soviet

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Government or the United States on the transfer of property to the Polish Provisional Government.

CHURCHILL stated his understanding that we were abandoning arrangements for the transfer of the assets and liabilities insofar as this conference is concerned. He pointed out that it is a much more serious question for the British than for the United States, since the British had made much larger grants to the Polish Government.

THE PRESIDENT stated he believed that it was not necessary to single out the United States or United Kingdom Governments for a special statement. The United States meets its obligations and always has.

STALIN asked whether the British Government proposed to exact from the Polish Provisional Government full return for advances granted to Polish forces.

CHURCHILL replied that this matter would be discussed with the Polish Provisional Government.

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STALIN then said that the Soviet Union had granted large credits to the Polish Provisional Government and to Polish forces. It is the Soviet opinion that Polish forces have redeemed these advances and that the account is regarded as closed. He believed the American proposal to be acceptable, but it needed polishing. He suggested an amendment to the American proposal which was read. The differences between the two texts will be that there will be none of the usual juridical delay.

THE PRESIDENT stated that there is no intent on the part of the United States to procrastinate.

STALIN then stated that the proposal might be accepted as is.

THE PRESIDENT thanked him and asked that the Conference pass to the next paragraph.

MR. BYRNES stated that the next paragraph concerned the holding of elections. The issue would be presented by Mr. Eden on behalf of the British.

MR. EDEN

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MR. EDEN suggested the deletion of certain words.

STALIN remarked that it was good of Mr. Eden to come part of the way and suggested that in the interests of the dignity of Poland it would be well if Mr. Eden could take another step. He stated that the preceding paragraph embodied everything necessary regarding freedom of the press. Press correspondents remain in Poland and enjoy freedom. There is no use repeating. The Poles are very touchy and will be hurt. They will suspect us of accusing them of being unwilling to accord a free press. Therefore, Stalin suggested that the document end with the paragraph regarding the election in which all democratic and anti-Nazi parties shall have the right to take part.

CHURCHILL stated that this suggestion was in no way a compromise.

STALIN replied that it was a compromise insofar as the Polish Provisional Government is concerned.

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CHURCHILL remarked that he had hoped to strengthen the declaration rather than weaken it.

THE PRESIDENT pointed out that the United States is very much interested in the Polish elections. There are six million Poles in the United States. A free election in Poland reported to the United States by a free press would make it much easier to deal with these Polish people. The President stated that it seemed to him that the Polish Provisional Government knew that the Three Powers would expect the press freely to report the elections and would expect this matter to be raised.

STALIN said that he could see that this compromise is not acceptable and then suggested an amendment of the last paragraph which was read.

THE PRESIDENT stated that this amendment suited him.

CHURCHILL asked whether the President was content and pointed out that the paragraph was now governed by the word "note." However, Churchill believed that the amendment was all right and did not make much difference.

MR. BYRNES

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MR. BYRNES then read section IV of the report of the Foreign Ministers' meeting. This concerned the implementation of the Yalta agreement on liberated Europe and the satellite states. It had been decided to postpone discussion of this paper to allow time for further study. Mr. Byrnes next read section V of the report regarding Italy and the other satellite states.

THE PRESIDENT stated that on the first day of the meeting the American Government had presented two papers, one on policy toward Italy and the other on policy toward the satellite states. He remarked that the surrender terms for Italy were much more drastic than the surrender terms for those other satellite states which surrendered later. The American Government felt that there should be two separate papers on these matters, rather than one.

STALIN stated that he had an amendment to make to the American proposal concerning policy toward Rumania, Bulgaria, Hungary and Finland. He had no objection in principle to the American proposal. However, he wanted an addition made to paragraph two, which he read. This amendment, among other things, provided for recognition of the governments of these countries.

THE PRESIDENT stated that he could not agree to this amendment.

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STALIN then said that the two questions would have to be postponed, since Italy could not be dealt with alone.

THE PRESIDENT stated that the American Government was unable to recognize the governments of the other satellite countries. When these countries were established on a proper basis, the United States would recognize them and not before. The President stated that the meeting would proceed and that this question would be passed over.

CHURCHILL pointed out that time was passing, that the Heads of State had been here for a week and that many papers had been passed over. On this point he wanted to say that the position of the British Government was similar to that of the United States.

MR. BYRNES

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MR. BYRNES then read section VI of the report dealing with the agenda set by the Foreign Ministers in their morning meeting for the present meeting of the Heads of State. The remaining matters dealt with the Polish western frontiers, trusteeships and Turkey.

THE PRESIDENT stated that he wished to make a statement regarding the Polish frontiers. As the Crimean Declaration read it was decided that Germany would be occupied by the Soviet Union, the United Kingdom, the United States and France, and that the Polish frontiers would be favorably considered by the four governments but that final settlement of these frontiers would be effected at the peace conference. During the first day's meeting it was decided that in considering the boundary of Germany the 1937 frontiers would be the point of departure. The three governments had decided upon the zones and their boundaries had been set. We have already gone back to the zone assigned to us and the British have done the same. It now appears as if another occupying government was being assigned a zone. This was being done without consultation. If the Poles were occupying a zone this should have been agreed on. The President stated that he was unable to see how reparations or other questions could be decided if Germany was carved up. These matters should be considered at the present conference. He was very friendly toward the Polish Provisional Government and it is probable that full agreement could be reached on what the Soviet Government desires, but he wanted consultation.

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STALIN replied that the Crimean decision says that the three Heads of Government felt that the eastern frontiers should follow the Curzon line. In regard to the western frontiers, it was decided that Poland should receive cessions of territory in the north and west. The declaration goes on to say that the three Heads of Government had decided that a new Polish government should consult at the appropriate time on the final settlement of the western frontiers.

THE PRESIDENT stated that this was correct, but that it was not correct to assign a zone. He agreed with Stalin's reading of the Crimean declaration.

STALIN

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STALIN stated that on the basis of the Crimean declaration the Polish Provisional Government had already stated its views in regard to the western frontiers.

THE PRESIDENT replied that this had not been done to the United States Government to his knowledge.

STALIN remarked that he had in mind the Polish Provisional Government.

THE PRESIDENT then stated that he now understood that the Secretary of State yesterday had received a communication from the Polish Provisional Government which he, the President, had not seen.

STALIN stated that the Soviet Union proposed that the Conference express an opinion on the wishes of the Polish Government regarding the western frontiers. It made no difference whether this was done today or tomorrow. The final settlement would, of course, be left to the peace conference. In regard to the statement that the Russians had given the Poles a zone of occupation without agreement, Stalin claimed that this was not quite accurate. Several communications had been received from the American and British Governments to the effect that Polish administration should not be established in certain areas until the western frontiers had been finally set. The Soviet Union could not accept the suggestions, since the German population in these areas had followed the German army to the west and the Poles had remained. The Red Army had needed local administration in this territory, since it was not accustomed to setting up an administration, fighting and clearing out enemy agents at the same time. The American and British Governments had been so informed. The Soviet Government was more ready to permit the functioning of the Polish administration, since Poland was to receive territorial sessions in the west. He was unable to see what harm was done by the establishment of a Polish administration where only Poles remained.

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THE PRESIDENT stated that he had no objection to an expression of opinion regarding the western frontiers, however, he wanted it distinctly understood that the zones of occupation will be as established. Any other course will make reparations very difficult, particularly if part of the German territory is gone before agreement is reached on what reparations should be.

STALIN

STALIN replied that the Soviet Union was not afraid of the reparations question and would if necessary renounce them.

THE PRESIDENT replied that the United States would get no reparations anyhow. This made no difference. We were trying to keep from paying more, as we did before.

STALIN remarked that everything the President said was interpretative since no frontiers had been ceded at the Crimea except for the provision that Poland would receive territory. The western frontier question is open and the Soviet Union is not bound.

THE PRESIDENT repeated: "You are not?"

STALIN replied: "No."

CHURCHILL said that he had a good deal to say about the actual line, but gathered that the time for saying it was not yet.

THE PRESIDENT stated that it was not possible for the Heads of State to settle this question. It was a matter for the peace conference.

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STALIN remarked that it would be very difficult to restore a German administration to this area. Stalin stated that he would like the President to understand the Russian conception, to which they adhered both in war and during the occupation. An army fights in war and cares only for its efforts to win the war. To enable an army to win and advance it must have a quiet rear. An army cannot fight the enemy and the rear. It fights well if the rear is quiet and better if the rear is friendly. Even if the Germans had not fled, it would have been difficult to set up a German administration in these areas since the majority of the population was Polish. He asked the President to imagine the establishment of a German administration which would stab one in the back while the Poles were there who received the Soviet army enthusiastically. Since such a situation existed, it was natural that the Soviet Government set up an administration of friends.

THE PRESIDENT

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THE PRESIDENT stated his agreement and sympathy for this situation but pointed out that there were other aspects of the matter.

STALIN insisted that there was no other way out. Soviet action does not imply that the Russians had settled the question themselves. If the President did not agree, the question should be suspended.

CHURCHILL inquired whether the question could be suspended. There is also the question of supply, which is very urgent. The region in question is a very important source of food from which Germany is to be fed.

STALIN asked who will work to produce the grain; who will plow the fields; this must be borne in mind.

THE PRESIDENT pointed out that each was stating in a friendly way his own point of view. The question was not one of who occupied an area, but a question of the occupation of Germany. We occupy our zone, the British theirs, the French theirs, and the Soviet Union should occupy theirs. There is no objection to the discussion of the western frontiers. The President did not believe that they were far apart on this matter.

STALIN insisted that on paper these areas constituted German territory, but practically, they were Polish territories since there is no German population.

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THE PRESIDENT remarked that nine million Germans are a lot.

STALIN maintained that they had all fled.

CHURCHILL remarked that in case this was true consideration should be given to the means of feeding them in the regions to which they had fled, as the produce of the land they had left was not available to nourish Germany. Churchill stated his understanding that under the full Polish plan put forward by the Soviet Government, one quarter of the total arable land of 1937 Germany would be alienated from the German area on which food and reparations were based. This was tremendous. Insofar as the populations were concerned, it appeared that three to four million people would be moved from east of the Curzon line, but the pre-war population of the German territory to be transferred amounted to 8-1/4 millions. It was apparent that it was a serious matter to effect wholesale transfers of German populations and burden the remainder of Germany with their care if their food supply had been alienated.

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THE PRESIDENT

THE PRESIDENT interjected to ask where we would be if we gave France the Saar and the Ruhr.

STALIN replied that the Soviet Government had not made a decision in regard to French claims but had done so in regard to the western frontier of Poland.

CHURCHILL remarked that in regard to Stalin's statement that all Germans had left the areas in question there are figures showing that there are about two and a half millions left. This should be explored.

STALIN stated that the questions of frontiers had been up for discussion but that the Conference was now on the question of food supplies. He had no objection.

CHURCHILL replied that he had only wanted to point out the implications of this question.

STALIN stated that the Soviet Union fully appreciated the burden and admitted the difficulties which would arise from the transfer of this territory but that the German people were principally to blame for these difficulties. Churchill had quoted the figure of eight and a half million, said to be the population of this area. It should be remembered that there had been several call-ups during the war and that the rest of the population had left before the Soviet Army. They had found that the Stettin population of 500,000 had almost entirely disappeared, only 8,000 remaining. The majority of the Germans had gone west behind the line. Some, however, had gone to the Koenigsberg area since they had heard that the Russians would be in Koenigsberg and they preferred to deal with the Russians rather than with the Poles. No single German remained in the territory to be given Poland. Between the Oder and the Vistula the Germans had quitted their fields which are now being cultivated by the Poles. It is unlikely that the Poles would agree to the return of these Germans. This situation should be borne in mind.

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THE PRESIDENT stated that he wanted again to declare that the occupation zones should be occupied as agreed upon. The question of whether the Poles should have part of Germany cannot be settled here.

CHURCHILL stated that he agreed to compensation for Poland at the expense of Germany for that territory taken

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from the east of the Curzon Line. However, he had thought that a balance would be maintained. Poland was now taking a far greater territory than that they lost. This could not be for the good of Europe. Millions of people would be moved across the Curzon Line and other millions would be moved elsewhere. These vast transfers of population constituted a great shock to his country. It would seem to bring about a position not possible for him. Moreover, he did not believe that it was good for Poland. If it was true that the Germans have run away, they should be encouraged to come back. Poland which owes all to the Great Powers has no right to bring about a catastrophe. He wanted to emphasize these things since he was anxious that Stalin should see our difficulties. We see his. We do not want to be left with a German population deprived of sources of food supply. Take the immense population of the Ruhr which is in the British zone. If food is not found, we might be confronted with a condition similar to that in the German concentration camps but on a far larger scale.

STALIN maintained that Germany had always had to import food and will need to continue.

CHURCHILL replied that this was certainly true if their feeding grounds were taken.

STALIN remarked that the Germans could buy food from the Poles.

CHURCHILL insisted that he did not admit that this territory is Polish.

STALIN stated that the territory is inhabited by Poles who cultivated the fields, not by Germans. It is impossible to ask the Poles to cultivate the fields and give the food to the Germans.

CHURCHILL pointed out that certain conditions in this great area in which Poles have been introduced are most peculiar. He understands that the Poles are selling Silesian coal to Sweden. They are doing so at a time when England had to go through a fireless winter. Great Britain stands on the general principle that the supply of food from the 1937 German territories should be available to the whole German people in proportion to their number irrespective of the particular zone in which the food is produced.

STALIN

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STALIN asked who is to produce the coal. The Germans do not, the Poles are producing the coal.

CHURCHILL said, "You mean the Silesians?"

STALIN said they all fled.

CHURCHILL remarked that they had fled from fright and could now return.

STALIN stated that these people were reluctant to return and that the Soviet Union is not in sympathy with them. He was afraid that the Poles would hang them if they returned.

CHURCHILL then remarked that he had been deeply impressed by what Stalin had said about the mistake of letting past bitterness influence future problems. We should not have a mass of people dumped upon us, while the Poles acquire food which the Germans need.

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STALIN replied that what he had said yesterday did not apply to war criminals.

CHURCHILL interjected that surely the eight and a half million were not war criminals.

STALIN stated that he had in mind the proprietors. He went on to state that the Soviet Union is purchasing coal from Poland since Russia has coal shortages.

THE PRESIDENT stated that it seems to be an accomplished fact that a large piece of Germany has been given to the Poles. The United States is short of coal but has made arrangements to ship considerable quantities to Europe. The Silesian mines are a part of Germany for reparations and feeding purposes. Under these conditions we will talk about boundaries but the Poles have no right to take this territory now and remove it from the German economy. Simply stated, the case is are the zones valid until peace, or are we giving Germany away piecemeal.

STALIN

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STALIN insisted that no one can exploit this region but the Poles. Russia is short of labor and there are no Germans there. Apparently German propaganda had carried the day. Either all production would be stopped or the Poles would operate it.

STALIN pointed out that the Poles operated in their country rich coal areas. Now Silesia had been added. The Poles are now working the mines. We cannot take their coal for nothing.

CHURCHILL pointed out that the Silesian mines had always operated with large numbers of Polish miners. There is no objection to the mines being operated as an agency of the Soviet Government but not for the Polish Government.

STALIN stated that this was not possible because it would disturb normal relations between two states. He would like to draw Churchill's attention to the fact that there is a serious German shortage of labor. Most enterprises during the advance of the Soviet army employed foreign labor. When Russian troops entered, the foreign labor had been freed and the laborers went home. Where have the German workers gone? They are either killed or captured. Such is the situation. A vast German industry existed with few German laborers. Everything fell to pieces before our army. Either these enterprises are closed or the local population, here, the Poles, should be given a chance to work. This is not a result of deliberate policy but the result of a situation. No one but Germany is to blame. In regard to Churchill's statement about the western frontier to the effect that Poland was getting too much, he agreed that the Provisional Government's proposal for territory would create difficulties for Germany.

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CHURCHILL interjected, "For us all".

STALIN went on to state that our policy is to create difficulty for the Germans in order to make it difficult

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for German power to rise again. It was better to make difficulties for the Germans than for the Poles.

THE PRESIDENT remarked that it was bad to create difficulties for the Allies.

STALIN stated that the less industry there was in Germany the greater the market would be for American and British goods. He asked what is the best. We had brought the state which competed with our countries to its knees. Germany was a dangerous business rival because it had lower living standards. He repeated, "What is best".

CHURCHILL remarked that we did not wish to be confronted by a mass of starving people.

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STALIN replied "there will be none".

CHURCHILL said that Mr. Attlee wished to make a statement.

MR. ATTLEE stated that he wanted to say in regard to the immediate situation on the part of the occupation powers that aside from the boundaries between Germany and Poland we are faced with a country in chaos and a country which as an economic unit depends to a considerable extent for coal and food on the eastern area partly inhabited by Poles. It would seem that pending the final settlement the resources of the whole 1937 Germany would have to bear a first charge on the sustenance of the whole people and if a part of Germany is to be detached in anticipation, it would be a very heavy burden on the powers charged with the occupation of the western and southern zones. Any labor needed to exploit the eastern areas should be made available from the rest of Germany including released army forces. They should be directed to such places as they can work most usefully. The Allies should not be confronted by an impossibly difficult situation.

STALIN replied that Mr. Attlee should bear in mind that Poland is also an Ally.

ATTLEE

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ATTLEE replied that this was so but it should not be compensated at the expense of the rest of the Allies.

THE PRESIDENT said that he wished to make a frank statement of what he thought. He could not agree to the separation of the eastern part of Germany under these circumstances. This must be considered in connection with reparations and the supply problems of the whole German people.

STALIN said, Are we through today?

THE PRESIDENT replied that the Conference had apparently reached an impasse on this matter.

CHURCHILL added that they were not through but that there were more agreeable things to come. He suggested later consideration.

THE PRESIDENT announced that the Conference was adjourned until 5 p.m. on July 22.

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